Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: June 22, 2026

Department C-15 hears law and motion on Mondays at 1:45 p.m.

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	**Davis v. Pfaffly** 2022-01294841 Discovery Motions as to Carol Pfaffly Discovery Motions as to Larry Pfaffly	Plaintiff Jaimie Davis' motions to compel Defendants Larry Gene Pfaffly and Carol A Pfaffly to serve further responses to Plaintiff's Form Interrogatories, Set Two; Special Interrogatories, Set Two; Requests for Production, Set Two; and Requests for Admissions, Set Two are CONTINUED to a date to be determined by parties and the court. All parties and/or counsel are **ORDERED to appear in person; no Zoom appearances will be allowed.** The parties/counsel have not engaged in sufficient attempts to meet and confer. (See Code Civ. Proc., § 2016.040; *Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1293 [Discovery Act requires moving party to declare he or she has made a serious attempt to obtain an informal resolution of each issue; rule designed to encourage parties to work out their differences informally to avoid necessity for formal order, which lessens burden on court and reduces unnecessary expenditure of resources by litigants]; *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*

		(2007) 148 Cal.App.4th 390, 402 [central precept of Discovery Act that discovery be self-executing].) The parties did not meaningfully meet and confer prior to Plaintiff filing amended motions. The parties/counsel are ORDERED to engage in additional attempts to meet and confer, in person, telephonically, or over remote videoconferences (not email), to resolve these disputes informally, or to narrow the scope of the dispute. If Defendants agree to serve further responses, Defendants shall serve verified further responses no later than nine court days before the hearing. The parties/counsel are ORDERED to file a JOINT STATUS REPORT, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing.
2	**Flores v. General Motors, LLC** **2024-01397024** Motion for Summary Judgment/Adjudication	Defendant General Motors LLC's Motion for Summary Judgment or, Alternatively, for Summary Adjudication is GRANTED. Plaintiffs' written objections (ROA 100) are OVERRULED. Plaintiffs' request for a continuance is DENIED. To be entitled to a mandatory continuance under Code Civ. Proc. §437c, subdivision (h), an opposing party's declaration in support of a motion to continue the summary judgment hearing should show the following: (1) facts establishing a likelihood that controverting evidence may exist and why the information sought is essential to opposing the motion; (2) the specific reasons why such evidence cannot be presented at the present time; (3) an estimate of the time necessary to obtain such evidence; and (4) the specific steps or procedures the opposing party intends to utilize to obtain such evidence. (*Johnson v. Alameda County Med. Ctr.* (2012) 205 Cal.App.4th 521, 532 (*Johnson*).) Plaintiffs request a continuance for 60 days in order to depose GM's Person Most Qualified ("PMQ"). Plaintiffs contend they have made multiple attempts to schedule a deposition of both Defendants' respective PMQs, but neither Defendant has produced their witness. Plaintiffs contend Defendants have deprived them of the opportunity to elicit information that could lead to more disputes of material fact. Plaintiffs failed to file a declaration in support of their request for a continuance. Plaintiffs also failed to establish good cause since no special circumstances are presented here.

		While Plaintiffs contend they attempted to schedule the PMQ depositions, they never filed a motion to compel the depositions. Plaintiffs' failure to enforce their discovery rights shows a lack a diligence not special circumstances that prevented the completion of discovery. Further, Plaintiffs' vague assertions that the depositions could lead to disputes of material facts do not establish good cause. Accordingly, Plaintiffs are not entitled to either a mandatory continuance under section 437c, subdivision (h) or a discretionary continuance. <u>Second Cause of Action – Breach Express Warranty under the SBA</u> For breach of express warranty claims concerning "new motor vehicles," the commonly called "refund-or-replace" remedy requires an automobile manufacturer or other original warrantor who does not repair a "new motor vehicle" to conform to an express warranty within a reasonable number of attempts to promptly replace the vehicle or make restitution to the buyer. (Civ. Code § 1793.2, subd. (d)(2).) The SBA's definition of "new motor vehicle" includes "a dealer-owned vehicle and a 'demonstrator' or other motor vehicle sold with a manufacturer's new car warranty." (Cal. Civ. Code § 1793.22, subd. (e)(2).) The California Supreme Court recently clarified "that a motor vehicle purchased with an unexpired manufacturer's new car warranty does not qualify as a 'motor vehicle sold with a manufacturer's new car warranty' under section 1793.22, subdivision (e)(2)'s definition of 'new motor vehicle' unless the new car warranty was *issued with the sale*." (*Rodriguez, supra,* 17 Cal.5th at pp. 196, 206 [emphasis added].) Plaintiffs purchased the Vehicle used from Hertz on 4/7/2017, with 34,105 miles on the odometer. GM was not a party to that transaction between Plaintiffs and Hertz. Plaintiffs were not the Vehicle's original owners. Dublin Buick GMC delivered the Vehicle to its original owner(s) on 2/13/2016 with 9 miles on its odometer. With that transaction delivering the Vehicle to the original owner(s), GM issued a New Vehicle Limited Warranty (the Warranty) with (i) bumper-to-bumper coverage for the earlier of 36 months or 36,000 miles and (ii) powertrain coverage for the earlier of 60 months or 60,000 miles. The Warranty's coverages began when Dublin Buick GMC delivered the Vehicle to its original owner(s), on February 13, 2016. When Plaintiffs purchased the Vehicle, GM did not issue or provide any new or additional warranty coverage to Plaintiffs or the Vehicle. Instead, Plaintiffs

		received only the balance of the coverage remaining under the Warranty. GM's material facts establish the SBA does not apply to the Vehicle because Plaintiffs purchased it used with only a portion of GM's Warranty remaining. (See *Rodriguez, supra*, 17 Cal.5th 189.) GM has therefore met its initial burden. Plaintiffs purport to dispute most of GM's material facts. "An opposing party who contends that a fact is disputed must state, on the right side of the page directly opposite the fact in dispute, the nature of the dispute and describe the evidence that supports the position that the fact is controverted." (Cal. Rules of Court, rule 3.1350(f)(2).) Plaintiffs fail to do so. Instead, Plaintiffs state their dispute on the left side of the page rather than the right. Plaintiffs also fail to cite evidence showing the facts are controverted. More importantly, many of Plaintiffs' contentions do not dispute the material facts asserted. For example, Plaintiffs purport to dispute UMF 2, which states: "Plaintiffs did not buy the Yukon new; Plaintiffs bought the Yukon used from The Hertz Corporation, on April 7, 2017, with 34,105 miles on the odometer." Plaintiffs respond "Disputed. Defendant's statement that the vehicle was 'used' is conclusory and contradicted by the fact that the vehicle was issued with 'new vehicle warranties' when purchased by Plaintiff per *Jensen v. BMWNA of North America, Inc.*, 35 Cal. App. 4th 112, 41 Cal. Rptr. 2d 298, 309 (Ct. App. 1995), which was in effect at the time of filing of this action." This response does not refute the facts stated. Instead, it merely asserts incorrect legal argument. Plaintiffs argue *Rodriguez* should not apply retroactively; instead, the Court should follow *Jensen v. BMWNA of North America, Inc.*, 35 Cal. App. 4th 112, 123 (holding the phrase "other motor vehicle sold with a manufacturer's new car warranty" in section 1793.22, subdivision (e)(2) covers "cars sold with a balance remaining on the manufacturer's new motor vehicle warranty"), which was in effect when this action was filed. Plaintiffs' argument lacks merit. First, judicial decisions interpreting legislative measures generally apply retroactively. (*Vazquez v. Jan-Pro Franchising Intern., Inc.* (2021) 10 Cal.5th 944, 952; *Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 24.) Second, the California Supreme Court examined the holding in *Jensen* and expressly disapproved it to the extent it was inconsistent with the *Rodriguez* opinion. (*Rodriugez, supra,* 17 Cal.5th at 204-205.)

		Thus, the second cause of action fails as a matter of law. <u>First Cause of Action – Breach Implied Warranty under the SBA</u> Plaintiffs' first cause of action for breach of implied warranty also fails as a matter of law. Under the SBA, "every sale of consumer goods that are sold at retail in the state shall be accompanied by the manufacturer's and the retail seller's implied warranty that the goods are merchantable." (Civ. Code, § 1792.) "'Implied warranty of merchantability' . . . means that the consumer goods meet each of the following: (1) [p]ass without objection in the trade under the contract description[;] (2) [a]re fit for the ordinary purpose for which such goods are used[;] (3) [a]re adequately contained, packaged, and labeled[;] and (4) [c]onform to the promises or affirmations of fact made on the container or label." (Civ. Code, § 1791.1, subd. (a).) As mentioned above, "consumer goods" are defined as "any *new product* or part thereof . . . ." (Civ. Code § 1791, subd. (a) [emphasis added].) The implied warranties under the SBA, however, do not apply to manufacturers with respect to the sale of used goods. (See Civ. Code, § 1795.5; *Nunez v. FCA US LLC* (2021) 61 Cal. App. 5th 385, 399 [analyzing Civ. Code § 1795.5 and concluding: "It is evident from these provisions that only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods"] [emphasis added].) Simply put, "only distributors and retail sellers, *not manufacturers*, are liable for breach of implied warranties in the sale of a used car." (*Nunez*, supra, 61 Cal. App. 5th at p. 399 [emphasis added].) Here, because Plaintiffs purchased the Vehicle used and there is "no evidence that [GM] was a distributor or retail seller of [the used Vehicle] or in any way acted as such," the breach of implied warranty claim fails as a matter of law. (*Nunez*, *supra*, 61 Cal.App.5th at p. 399. Plaintiffs do not expressly address the first cause of action. Thus, the first cause of action fails as a matter of law. <u>Third and Fourth Causes of Action – Breach of Express and Implied Warranty under MMWA</u> The MMWA establishes a federal cause of action for breach of a written or an implied warranty. (15 U.S.C. § 2310, subd. (d).) The MMWA calls for the application of state warranty law, not the creation of additional federal law, except in specific instances where the MMWA expressly prescribes a regulating rule. (*Daugherty v. American Honda Motor Co.,*

		Inc. (2006) 144 Cal.App.4th 824, 832–33, citing *Walsh v. Ford Motor Co.* (D.C.Cir.1986) 807 F.2d 1000, 1012.) Claims under the MMWA "stand or fall" with express and implied warranty claims under state law. (*Clemens v. DaimlerChrysler Corp.* (9th Cir. 2008) 534 F.3d 1017, 1022 [the plaintiff's lack of privity under California law doomed his MMWA warranty claims]; *Daugherty v. American Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 832-833 [sustaining demurrer to MMWA cause of action because plaintiffs failed to plead a state-law warranty violation]; *West v. Rheem Manufacturing Company* (C.D. Cal. 2025) 765 F.Supp.3d 976, 990 [finding dismissal of MMWA cause of action warranted due to dismissal of state-law express and implied warranty claims].) Plaintiffs argue they can seek SBA remedies through the MMWA because the SBA remedies are severable from the SBA's substantive rights. However, Plaintiffs' cited authorities are distinguishable and unpersuasive for the reasons stated in GM's reply. Plaintiffs contend these causes of action are based on the California Uniform Commercial Code ("UCC"). However, the FAC does not allege any UCC causes of action. "[T]he pleadings set the boundaries of the issues to be resolved at summary judgment. A plaintiff cannot bring up new, unpleaded issues in his or her opposing papers. (*Oakland Raiders v. National Football League* (2005) 131 Cal.App.4th 621, 648.) "It would be patently unfair to allow plaintiffs to defeat the summary judgment motion by allowing them to present a moving target unbounded by the pleadings." (*Champlin/GEI Wind Holdings, LLC v. Avery* (2023) 92 Cal.App.5th 218, 224. The Court notes it granted Plaintiffs' motion for leave to amend on 1/26/26, which only sought to add the two MMWA causes of action. (ROA 75.) Plaintiffs did not seek leave to add UCC causes of action. Therefore, because Plaintiffs' SBA causes of action fail, their MMWA causes of action fail for the same reasons. The motion for summary judgment is GRANTED.
4	**Plummer v. Norred** 2025-01502837 Demurrer to 1st Amended Complaint	The general demurrer of defendant Mark W. Norred, CPA, to both causes of action in the first amended complaint of plaintiffs Law Offices of Mark B. Plummer, Mark Plummer, and Jocelyn Plummer is OVERRULED.

		Plaintiffs contend the allegations in the FAC concern defendant's representation of them in the audit of their 2018 and 2019 tax returns. They contend that, on December 30, 2024, defendant told them that he could no longer represent them in that audit and they needed to retain the services of a tax attorney. They contend that defendant thereafter refused to provide them with copies of documents from the audits and when they were able to obtain some of the documents through a third party, they learned that defendant failed to provide the IRS with documents that it repeatedly asked him for. Plaintiffs contend that defendant hid this failure from them and that they would have provided the documents had they been aware of the IRS requests. Plaintiffs contend that the limitations period started running on December 30, 2024, i.e., the date when defendant told them that he could no longer represent them in the audits. Based on these allegations in the FAC, the Court cannot determine, as a matter of law, when plaintiffs' causes of action accrued and the limitations period began to run. Thus, the Court cannot determine, as a matter of law, that the action, which was filed on August 11, 2025, is time-barred under either a two-year or three-year limitations period. Defendant is to file an answer to the FAC within 20 days.
5	**Morley v. Mike Moshayedi Trustee of M & P Moshayedi Revocable Trust** 2024-01450562 Motion for Summary Judgment and//or Adjudication	Defendants Mike Moshayedi and Parto Moshayedi (aka Parto Ghadimi), as trustees of the M. and P. Moshayedi Revocable Trust's Motion for Summary Judgment, or in the Alternative, Summary Adjudication is GRANTED in part and DENIED in part. **Objections to evidence** The Court OVERRULES Plaintiff's objections to evidence numbers 1, 4, 5, 8, 9, 11, and 12. The Court OVERRULES Defendants' objections to evidence numbers 1, 6, 10. The Court declines to rule on the remaining objections as immaterial to the disposition of the motion. (Code Civ. Proc., § 437c(q).) **First cause of action for breach of Lease** A claim for breach of contract requires a showing of "(1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4)

		the resulting damages to the plaintiff." (*D'Arrigo Bros. of California v. United Farmworkers of America* (2014) 224 Cal.App.4th 790, 800) The Option Agreement speaks only to Option Consideration and rent paid. (UMF No. 5. (Ex. 3 at § 5).) Defendants have not demonstrated Plaintiff's damages for breach of the Lease are limited exclusively to Option Consideration and rent paid or that the Lease forecloses the possibility of any damages other than rent paid. Additionally, a cause of action for breach of lease and breach of the implied warranty of habitability differ in their required showings (e.g., a showing of the existence of a contract is not required for breach of the implied warranty of habitability) as well as in the damages available. (*See Quevedo v. Braga* (1977) 72 Cal.App.3d Supp.1, 8 [discussing damages for a breach of implied warranty of habitability; disapproved of on other grounds by *Knight v. Hallsthammar* (1981) 29 Cal.3d 46.] As such, Defendants have not shown these causes of action are so duplicative they would "completely dispose of a cause of action." (Code Civ. Proc., § 437c, subd. (f)(1).) Finally, Defendants have not demonstrated how each of the alleged habitability issues raised by Plaintiff were due to Plaintiff's failure to properly use, operate, or safeguard the Premises. (UMF No. 26 (Ex. 6, § 11.A).) Moreover, as discussed further below, while Defendants contend they had no duty to repair non-habitability defects, there are triable issues of fact as to whether these issues constitute material defective conditions affecting the Premises' habitability. Defendants have not met their burden of proving Plaintiff cannot establish one of the essential elements of his breach of Lease claim or that there is a complete defense to this cause of action. The Court DENIES summary adjudication of the first cause of action. **Second cause of action for breach of the implied covenant of good faith and fair dealing** Defendants' contention as to damages fails for the same reason discussed above. Defendants' contention as to duplicative causes of action similarly fails for the reason discussed above, that is, the causes of action require different showings and thus are not so duplicative as to "completely dispose of a cause of action." While "the covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct that

frustrates the other party's rights to the benefits of the agreement" (*Waller v. Truck Ins. Exchange, Inc.* (1995) 11 Cal.4th 1, 36 [citation omitted]), a claim breach of the implied warranty of habitability requires a showing of the existence of a material defective condition affecting the premises' habitability. (*Peviani, supra,* 62 Cal.App.5th at p. 891 [citation omitted].)

Moreover, while Defendants rely on Plaintiffs' contractual right to exercise the Option remaining open and the Purchase Agreement's provision that the purchase of the Property would be as-is, a claim for breach of the implied covenant of good faith and fair dealing is not limited to the express terms of the contract, however, but addresses implied supplemental covenants.

In entering into the Residential Lease Agreement and Option Agreement, Plaintiff intended to reside in, evaluate, and potentially purchase the Property. (PUMF No. 1 (Morley Decl., ¶ 2.) Plaintiff presents evidence of Defendants' apparent refusal to address issues with the Property raised in a 4/19/24 correspondence. (PUMF Nos. 8, 9 (Ex. 8).) This raises a triable issue of fact as to whether Defendants' conduct frustrated Plaintiff's rights to the benefit of the agreements, including the right to properly evaluate the Property for potential purchase given the various alleged issues with the Property.

The Court DENIES summary adjudication of the second cause of action.

Third cause of action for recission of lease

Civil Code section 1689 permits rescission where consent was obtained by mistake or fraud, or failure of consideration.

Plaintiff alleges "Plaintiff's execution of the Lease was fraudulently induced in that Defendants concealed and downplayed the defects and habitability issues with the house." (FAC ¶ 33.)

"[T]he elements of a fraud cause of action that would underlie a request for rescission . . . 'are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage.'" (*Geraghty v. Shalizi* (2017) 8 Cal.App.5th 593, 596 [citation omitted].)

Defendants contend no misrepresentation could have occurred because Plaintiff and Defendants did not

		communicate with each other until after the agreements were signed. (UMF No. 43), and the agreements provide the Property would be sold "As-Is" (Ex. 4, § 7.B.1) and "strongly advised" Plaintiff "conduct investigations of the entire Property in order to determine its present condition" because the Moshayedi Trust "may not be aware of all defects affecting the Property or other factors that Buyer considers important." (Ex. 4, § 7.B.2.) Plaintiff contends the lack of direct personal communication between the parties is immaterial and the relevant questions are what Defendants knew, what they told Rex McKown (the listing agent), what McKown conveyed to Plaintiff, and whether Defendants intended or reasonably expected those communications to influence Plaintiff's consent to the transaction. (Opp. at 14:26-15:4.) Plaintiff does not, however, rely on or cite to any evidence to raise triable issues of fact on these issues. (Code Civ. Proc., § 437c, subd. (p)(2).) Plaintiff further contends Defendants' failure to provide the required Transfer Disclosure Statement (TDS) creates a triable issue as to whether they concealed material information about the Property's condition. (PUMF No. 18.) Notwithstanding the propriety of the timing of Defendants' statutory obligation to provide the TDS, the provisions regarding Defendants' delivery of the TDS were explicitly set forth in the Option Agreement and Purchase Agreement, both of which Plaintiff was a party. (Ex. 4 (Purchase Agreement) § 3.N(1), (Ex. 3, § 8.A.) (UMF No. 4.) As such, Plaintiff was aware of the parties' agreement as to the timing of the TDS and cannot demonstrate a triable issue of fact as to Defendants' intent to defraud Plaintiff with respect to its delivery. The Court GRANTS summary adjudication of the third cause of action. **Fourth cause of action for reformation of lease – Cal. Civ. Code § 3399** Civil Code section 1689 provides a contract may be rescinded if the consent of the party rescinding was given by mistake, or obtained through duress, menace, fraud, or undue influence.

		Plaintiff alleges, "Prior to execution of the Lease, Plaintiff and Defendants mutually agreed and intended that: (a) all monthly rent payments of $25,000, together with the $650,000 option fee, would be credited dollar-for-dollar toward the purchase price of the property at closing; and (b) the Lease documents would operate together as part of a lease-to-own transaction. 39. The Lease as executed, however, failed to reflect this mutual intent." (FAC ¶¶ 38-39.) Specifically, Defendants contend the intention of the parties that all monthly payments and the $650,000 option fee, would be credited toward the purchase price of the Property and that the Lease documents would operate together as part of a lease-to-own transaction is reflected in the Lease. Specifically, the Option Agreement provides, "If this Option is exercised, upon close of escrow of the attached Purchase Agreement, all of the Option Consideration and $25,000 per month of rent actually paid by Optionee, shall be applied toward Optionee's down payment obligations under that Agreement." (Ex. 3, § 8.C.) Additionally, the Option Agreement incorporates by reference the Real Estate Purchase Agreement and Residential Lease Agreement. If the Option Agreement had been exercised, the Residential Lease Agreement would have been terminated on the earlier of various dates relating to escrow for purchase of the Subject Property. (Ex. 3, § 2.B.) Thus, Defendants have demonstrated the Lease reflects the parties' intent as alleged by Plaintiff. Plaintiff contends Defendants have not established the writings fully and accurately reflected the parties' actual understanding. (Opp. at 17:16-24.) Plaintiff does not, however, set forth specific facts as to what the parties' actual understanding may have been or how the Lease otherwise does not reflect that understanding. (Code Civ. Proc., § 437c, subd. (p)(2).) The Court GRANTS summary adjudication of the fourth cause of action. **Fifth cause of action for breach of implied warranty of habitability** As set forth above, "The elements of a cause of action for breach of the implied warranty of habitability 'are the existence of a material defective condition affecting the premises' habitability, notice to the landlord of the condition

		within a reasonable time after the tenant's discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.'" (*Peviani, supra,* 62 Cal.App.5th at p. 891.) As discussed above, Defendants have not demonstrated how each of the alleged habitability issues raised by Plaintiff were caused by Plaintiff. Moreover, whether the Premises was uninhabitable due to the alleged issues is a question of fact. (*Lehr v. Crosby* (1981) 123 Cal.App.3d Supp.1, 6 [citation omitted]; *see also Peviani, supra,* 62 Cal.App.5th at p. 890 ["a finder of fact would be required to determine whether any such defects were substantial"].) The evidence demonstrates there are triable issues of fact as to habitability, including whether, for example, half of the Property being without hot water (UFM No. 72) is considered a substantial defect as well as whether Defendants were given a reasonable time to correct the deficiency. The Court DENIES summary adjudication of the fifth cause of action. **Sixth cause of action for breach of implied covenant of quiet enjoyment** "In the absence of language to the contrary, *every lease* contains an implied covenant of quiet enjoyment, whereby the landlord impliedly covenants that the tenant shall have quiet enjoyment and possession of the premises. The covenant of quiet enjoyment 'insulates the tenant against any act or omission on the part of the landlord, or anyone claiming under him, which interferes with a tenants right to use and enjoy the premises for the purposes contemplated by the tenancy.'" (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 588.) "Minor inconveniences and annoyances are not actionable breaches of the implied covenant of quiet enjoyment. To be actionable, the landlords act or omission must substantially interfere with a tenants right to use and enjoy the premises for the purposes contemplated by the tenancy. (*Id*. at p. 589.) As such, while this cause of action focuses on use and enjoyment of the property, the breach of implied warranty of habitability focuses on the physical condition of the premises.

		Defendants have not shown these causes of action are so duplicative it would "completely dispose of a cause of action." (Code Civ. Proc., § 437c, subd. (f)(1).) Nor have Defendants demonstrated there is no triable issue of fact whether the issues raised by Plaintiff interfered with Plaintiff's right to use and enjoy the Property. The Court DENIES summary adjudication of the sixth cause of action.
7	**Troung v. Batalla** 2023-0130672 Motion for terminating sanctions - Denied	Defendant's Motion for terminating sanctions is DENIED. Defendant moved for terminating sanctions on January 29, 2026. The hearing was originally set for May 18, 2026. The Court continued the hearing and ordered Defendant to properly serve Plaintiff. Defendant served the Motion by electronic service only. California Rules of Court rule 2.251(c)(3)(B) provides that self-represented parties "are to be served by non-electronic methods unless they affirmatively consent to electronic service." Similarly, Code of Civil Procedure section 1010.6 subdivisions (b)(1) and (f)(2) provide that unrepresented persons are exempt from mandatory electronic filing and service. There is no indication Plaintiff has affirmatively consented to electronic service. Defendant has not filed a new proof of service. Thus, Defendant has not complied with the Court's order. Defendant shall give notice.
8	**Sheehy v. Chicago Title Insurance Company** 2020-01146716 Motion for New Trial	Defendant, Chicago Title Ins. Co.'s motion for new trial is DENIED. Plaintiff's request for attorney fees is DENIED. The cause of action does not accrue until discovery of the loss that may be incurred if the title is not as represented in the policy." (*Lee v. Fidelity National Title Ins. Co.* (2010) 188 Cal.App.4th 583, 599–600. Plaintiff correctly asserts that under case law applying section 339 to title insurance claims, a plaintiff must be aware of facts which would cause them to believe there was a potential loss under the policy. Here, such a discovery would require knowledge not merely of the neighbors' encroaching porch, but that there was an underlying easement or other legal risk affecting Plaintiff's title to the property.

		The Court's instruction that "[k]nowledge of an encroachment is not knowledge of an easement" was consistent with applicable law including *Lee v. Fidelity National Title Ins. Co*. (2010) 188 Cal.App.4th 583, 600; *65 Butterfield v. Chicago Title Ins. Co.* (1999) 70 Cal.App.4th 1047, 1054; and *Overholtzer v. Northern Counties Title Ins. Co.* (1953) 116 Cal.App.2d 113, 126. In the absence of California legal authority clearly holding Plaintiff is entitled to fees under (*Brandt v. Superior Court* (1985) 37 Cal.3d 813, 817) for a post-trial motion such as motion for new trial, the Court declines to award Plaintiff attorney fees for opposing this motion. Defendant shall provide notice.
9	**Icon Identity Solutions, Inc. v. Santa Mix, Inc.** 2021-0121240 Motion for bifurcation denied. Request for judicial notice granted.	Defendant/Cross-Complainant Santa Mix's motion to bifurcate the trial is DENIED. Icon requests for judicial notice of this Court's rulings on the prior MSJ and a San Diego court's ruling on Santa Mix's motion to bifurcate in that court should be granted as records of the courts of this state under Evidence Code section 452(d). Whether or not to grant a motion to bifurcate is vested in the sound discretion of the trial court and is subject to reversal on appeal only for a clear abuse of discretion. (*Grappo v. Coventry Financial Corp.* (1991) 235 Cal.App.3d 496, 504.) Bifurcating the trial into a first phase to try the issue of whether Icon and Stratus were licensed does not serve the convenience of witnesses and would require reintroducing key documentation into evidence. (Nicolli Decl., ¶ 6-8.) Numerous witnesses who are based in Chicago would have to travel across the country to California twice if the trial was bifurcated. Further, even if Santa Mix prevails in the first phase, its claims for disgorgement of profits must be addressed it the second phase. Thus, a second phase is necessary no matter the outcome of the first phase. Accordingly, the Court exercises its discretion to deny the Motion. Defendant shall give notice.